

## Wings Food Industries v. Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 12 September 2016 · Writ-C No. 7964 of 2013 · **Writ dismissed as infructuous on petitioner's statement.**

### HEADNOTE

Writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, connected with similar pending petitions and given an interim restraint, was dismissed as infructuous on the petitioner's statement without a merits decision.

### FACTUAL SUMMARY

M/s Wings Food Industries petitioned Paschimanchal Vidyut Vitran Nigam Ltd. in Writ-C No. 7964 of 2013. The writ was connected with WP No. 30582 of 2009 and similar matters challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005. Respondents received three weeks to file a counter. Following the interim order already granted in the connected petition, the Court restrained demand of additional security until further orders. Petitioner's counsel later stated the writ had become infructuous.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.20

additional security

#### HOLDING

The writ challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement, without a merits decision on the clause. ¶ 3

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — VALIDITY OF ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petition dismissed as infructuous; the connected 4.20 challenge was not adjudicated. ¶ 3